CLAIM FOR DAMAGE, INJURY, OR DEATH

INSTRUCTIONS: Please read carefully the instructions on the reverse side and supply information requested on both sides of this form. Use additional sheet(s) if necessary. See reverse side for additional instructions.

FORM APPROVED
OMB NO. 1105-0008

1. Submit to Appropriate Federal Agency:

U.S. Department of Justice
Civil Division, Torts Branch
Federal Tort Claims Act Staff
P.O. Box 888, Benjamin Franklin Station, Washington, DC 20044

2. Name, address of claimant, and claimant's personal representative if any. (See instructions on reverse). Number, Street, City, State and Zip code.

CARLOS ELÍAS MAHECHA DÍAZ
200 Biscayne Boulevard Way, Apt. 3806
Miami, FL 33131
Personal representative: none (claimant acts on his own behalf)

3. TYPE OF EMPLOYMENT	4. DATE OF BIRTH	5. MARITAL STATUS	6. DATE AND DAY OF ACCIDENT	7. TIME (A.M. OR P.M.)
☐ MILITARY ☒ CIVILIAN	01/23/1955	Married	11/21/2024 Thursday	N/A

8. BASIS OF CLAIM (State in detail the known facts and circumstances attending the damage, injury, or death, identifying persons and property involved, the place of occurrence and the cause thereof. Use additional pages if necessary).

Malicious prosecution and abuse of process (28 U.S.C. §§ 1346(b), 2671-2680; § 2680(h) proviso) by federal investigative or law enforcement officers acting within the scope of their employment, in United States v. Carlos Mahecha, Case No. 1:19-cr-20738 (S.D. Fla.). The claimant was indicted on November 5, 2019 (conspiracy to commit wire fraud and nine counts of wire fraud), extradited from Colombia, taken into federal custody in Miami, Florida, and released on bond under court-ordered conditions. After a twelve-day jury trial the jury returned a verdict of NOT GUILTY on all ten counts on November 21, 2024, and the Court entered a Judgment of Acquittal on November 22, 2024 (DE 136). Facts, persons involved and legal basis: see the attached Addendum and claim letter.

9. **PROPERTY DAMAGE**

NAME AND ADDRESS OF OWNER, IF OTHER THAN CLAIMANT (Number, Street, City, State, and Zip Code).

N/A

BRIEFLY DESCRIBE THE PROPERTY, NATURE AND EXTENT OF THE DAMAGE AND THE LOCATION OF WHERE THE PROPERTY MAY BE INSPECTED. (See instructions on reverse side).

N/A - no property damage is claimed.

10. **PERSONAL INJURY/WRONGFUL DEATH**

STATE THE NATURE AND EXTENT OF EACH INJURY OR CAUSE OF DEATH, WHICH FORMS THE BASIS OF THE CLAIM. IF OTHER THAN CLAIMANT, STATE THE NAME OF THE INJURED PERSON OR DECEDENT.

Injuries suffered in the United States by the claimant, Carlos Elías Mahecha Díaz: (a) federal custody in Miami, Florida, from May 4 to May 10, 2023; (b) home detention with a GPS ankle monitor from May 10 to August 25, 2023 (DE 32) and pretrial release restrictions thereafter until the acquittal on November 21, 2024; (c) emotional distress, humiliation and injury to reputation in the United States; (d) attorneys' fees and defense costs paid to defend the prosecution, itemized in Exhibit 6. Detention in Colombia is not claimed. See Addendum.

11. **WITNESSES**

NAME	ADDRESS (Number, Street, City, State, and Zip Code)
Silvia B. Piñera-Vázquez, Esq.	Piñera-Vazquez Law Firm, 901 Ponce de Leon Blvd., Suite 400, Coral Gables, FL 33134
Luis Salazar, Esq.	Cole Schotz P.C., 80 SW 8th Street, Suite 1900, Miami, FL 33130
Tanya M. Cooper, CPA (+1 more: see Addendum)	Cooper Strategic Solutions, LLC, Weston, FL

12. (See instructions on reverse). **AMOUNT OF CLAIM** (in dollars)

12a. PROPERTY DAMAGE	12b. PERSONAL INJURY	12c. WRONGFUL DEATH	12d. TOTAL (Failure to specify may cause forfeiture of your rights).
$0.00	**$2,326,652.15**	**$0.00**	**$2,326,652.15**

I CERTIFY THAT THE AMOUNT OF CLAIM COVERS ONLY DAMAGES AND INJURIES CAUSED BY THE INCIDENT ABOVE AND AGREE TO ACCEPT SAID AMOUNT IN FULL SATISFACTION AND FINAL SETTLEMENT OF THIS CLAIM.

13a. SIGNATURE OF CLAIMANT (See instructions on reverse side).	13b. PHONE NUMBER OF PERSON SIGNING FORM	14. DATE OF SIGNATURE
	+1 (786) 657-9903	

CIVIL PENALTY FOR PRESENTING FRAUDULENT CLAIM

The claimant is liable to the United States Government for a civil penalty of not less than $5,000 and not more than $10,000, plus 3 times the amount of damages sustained by the Government. (See 31 U.S.C. 3729).

CRIMINAL PENALTY FOR PRESENTING FRAUDULENT CLAIM OR MAKING FALSE STATEMENTS

Fine, imprisonment, or both. (See 18 U.S.C. 287, 1001.)

INSURANCE COVERAGE

In order that subrogation claims may be adjudicated, it is essential that the claimant provide the following information regarding the insurance coverage of the vehicle or property.

15. Do you carry accident Insurance? ☐ Yes If yes, give name and address of insurance company (Number, Street, City, State, and Zip Code) and policy number. ☒ No

None.

16. Have you filed a claim with your insurance carrier in this instance, and if so, is it full coverage or deductible? ☐ Yes ☒ No

N/A

17. If deductible, state amount.

N/A

18. If a claim has been filed with your carrier, what action has your insurer taken or proposed to take with reference to your claim? (It is necessary that you ascertain these facts).

N/A - no claim has been filed with any insurance carrier. No insurance covered the claimant's defense costs.

19. Do you carry public liability and property damage insurance? ☐ Yes If yes, give name and address of insurance carrier (Number, Street, City, State, and Zip Code). ☒ No

None.

INSTRUCTIONS

Claims presented under the Federal Tort Claims Act should be submitted directly to the "appropriate Federal agency" whose employee(s) was involved in the incident. If the incident involves more than one claimant, each claimant should submit a separate claim form.

Complete all items - Insert the word NONE where applicable.

A CLAIM SHALL BE DEEMED TO HAVE BEEN PRESENTED WHEN A FEDERAL AGENCY RECEIVES FROM A CLAIMANT, HIS DULY AUTHORIZED AGENT, OR LEGAL REPRESENTATIVE, AN EXECUTED STANDARD FORM 95 OR OTHER WRITTEN NOTIFICATION OF AN INCIDENT, ACCOMPANIED BY A CLAIM FOR MONEY DAMAGES IN A **SUM CERTAIN** FOR INJURY TO OR LOSS OF PROPERTY, PERSONAL INJURY, OR DEATH ALLEGED TO HAVE OCCURRED BY REASON OF THE INCIDENT. THE CLAIM MUST BE PRESENTED TO THE APPROPRIATE FEDERAL AGENCY WITHIN **TWO YEARS** AFTER THE CLAIM ACCRUES.

Failure to completely execute this form or to supply the requested material within two years from the date the claim accrued may render your claim invalid. A claim is deemed presented when it is received by the appropriate agency, not when it is mailed.

If instruction is needed in completing this form, the agency listed in item #1 on the reverse side may be contacted. Complete regulations pertaining to claims asserted under the Federal Tort Claims Act can be found in Title 28, Code of Federal Regulations, Part 14. Many agencies have published supplementing regulations. If more than one agency is involved, please state each agency.

The claim may be filled by a duly authorized agent or other legal representative, provided evidence satisfactory to the Government is submitted with the claim establishing express authority to act for the claimant. A claim presented by an agent or legal representative must be presented in the name of the claimant. If the claim is signed by the agent or legal representative, it must show the title or legal capacity of the person signing and be accompanied by evidence of his/her authority to present a claim on behalf of the claimant as agent, executor, administrator, parent, guardian or other representative.

If claimant intends to file for both personal injury and property damage, the amount for each must be shown in item number 12 of this form.

The amount claimed should be substantiated by competent evidence as follows:

(a) In support of the claim for personal injury or death, the claimant should submit a written report by the attending physician, showing the nature and extent of the injury, the nature and extent of treatment, the degree of permanent disability, if any, the prognosis, and the period of hospitalization, or incapacitation, attaching itemized bills for medical, hospital, or burial expenses actually incurred.

(b) In support of claims for damage to property, which has been or can be economically repaired, the claimant should submit at least two itemized signed statements or estimates by reliable, disinterested concerns, or, if payment has been made, the itemized signed receipts evidencing payment.

(c) In support of claims for damage to property which is not economically repairable, or if the property is lost or destroyed, the claimant should submit statements as to the original cost of the property, the date of purchase, and the value of the property, both before and after the accident. Such statements should be by disinterested competent persons, preferably reputable dealers or officials familiar with the type of property damaged, or by two or more competitive bidders, and should be certified as being just and correct.

(d) **Failure to specify a sum certain will render your claim invalid and may result in forfeiture of your rights.**

PRIVACY ACT NOTICE

This Notice is provided in accordance with the Privacy Act, 5 U.S.C. 552a(e)(3), and concerns the information requested in the letter to which this Notice is attached.

A. *Authority:* The requested information is solicited pursuant to one or more of the following: 5 U.S.C. 301, 28 U.S.C. 501 et seq., 28 U.S.C. 2671 et seq., 28 C.F.R. Part 14.

B. *Principal Purpose:* The information requested is to be used in evaluating claims.

C. *Routine Use:* See the Notices of Systems of Records for the agency to whom you are submitting this form for this information.

D. *Effect of Failure to Respond:* Disclosure is voluntary. However, failure to supply the requested information or to execute the form may render your claim "invalid."

PAPERWORK REDUCTION ACT NOTICE

This notice is solely for the purpose of the Paperwork Reduction Act, 44 U.S.C. 3501. Public reporting burden for this collection of information is estimated to average 6 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the Director, Torts Branch, Attention: Paperwork Reduction Staff, Civil Division, U.S. Department of Justice, Washington, DC 20530 or to the Office of Management and Budget. Do not mail completed form(s) to these addresses.

ADDENDUM TO STANDARD FORM 95 - CLAIM FOR DAMAGE, INJURY, OR DEATH

Claimant: Carlos Elías Mahecha Díaz | Sum certain: US$ 2,326,652.15 | Re: United States v. Carlos Mahecha, No. 1:19-cr-20738 (S.D. Fla.)

Concurrent presentation (28 C.F.R. § 14.2(b)).

An identical claim arising from the same facts is being presented concurrently to the U.S. Department of State (Bureau of Diplomatic Security; copy to L/CID). The claimant requests that the agencies confer and designate a single agency to investigate and decide the claim. The amount stated is a single, non-cumulative sum; the claimant does not seek double recovery.

Continuation of Box 8 - Basis of claim.

On November 5, 2019, a grand jury in the Southern District of Florida returned an indictment charging the claimant with conspiracy to commit wire fraud (18 U.S.C. § 1349) and nine counts of wire fraud (18 U.S.C. § 1343) (Case No. 1:19-cr-20738). The claimant was extradited from Colombia and arrived at the Federal Detention Center in Miami, Florida, on May 4, 2023. On May 9, 2023 the Court set bond at US$3,000,000 (10% deposit, with Nebbia) plus a US$500,000 corporate surety bond (DE 15); the claimant was released on May 10, 2023 and remained subject to court-ordered release conditions until his acquittal. The prosecution continued for more than five years. Trial began on November 4, 2024; on November 21, 2024 the jury returned a verdict of NOT GUILTY on all ten counts, and on November 22, 2024 the Court entered a Judgment of Acquittal (DE 136). The claimant contends that federal investigative or law enforcement officers, acting within the scope of their employment, initiated and continued the prosecution without probable cause and with malice, and misused legal process, causing the damages described below. A detailed statement of facts, the persons involved and the legal basis is set out in the accompanying claim letter and its exhibits.

Continuation of Box 10 - Nature and extent of injury.

(a) Federal custody at FDC Miami, Florida, from May 4 to May 10, 2023 (6 days). (b) Home detention with a GPS ankle monitor from May 10 to August 25, 2023 (107 days); on August 24, 2023 the Court authorized removal of the monitor and continued the remaining release conditions (DE 32), which stayed in place until the acquittal on November 21, 2024 (454 further days). (c) Emotional distress, anxiety, humiliation and injury to reputation and professional standing in the United States throughout the prosecution. (d) Economic loss: attorneys' fees and defense costs actually paid to defend the prosecution, itemized invoice by invoice, with proof of payment, in Exhibit 6. The claimant's detention in Colombia is described only as background and is not claimed (28 U.S.C. § 2680(k)).

Continuation of Box 11 - Additional witness.

R.W. Simpson, The FairWay, LLC, 6750 N. Andrews Avenue, Suite 200, Fort Lauderdale, FL 33309.

Continuation of Box 12 - Computation of the sum certain.

A. Economic damages: attorneys' fees and defense costs paid (Exhibit 6)	**US$ 1,171,857.63**
A.1 Defense of the criminal case, post-indictment (Nov. 2019 - Nov. 2024)	974,363.87
A.2 Defense during the grand jury investigation (2017 - 2019)	197,493.76
B. Non-economic damages: loss of liberty, emotional distress, injury to reputation	**US$ 1,154,794.52**
TOTAL SUM CERTAIN (Boxes 12b and 12d)	**US$ 2,326,652.15**

The economic damages are listed in Box 12b together with the non-economic damages because both arise from the personal injury of malicious prosecution; no property damage or wrongful death is claimed. No insurance covered any part of these losses (Boxes 15-19).

Exhibits: 1 Indictment; 4 Bond and release conditions; 5 Verdict and Judgment of Acquittal (DE 136); 6 Itemized schedule of defense costs with invoices and proof of payment; other exhibits as listed in the claim letter.

I certify that the information in this Addendum is true and correct to the best of my knowledge and belief and that it forms part of my claim on Standard Form 95.

Carlos Elías Mahecha Díaz, Claimant

Date